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Washington Court Rules That Data Captured on Flock Safety Cameras Are Public Records

A Washington state trial court has shot down local municipalities' effort to keep [automated license plate reader](#) (ALPR) data secret.

The Skagit County Superior Court in Washington rejected the attempt to block the public's right to access data gathered by Flock Safety cameras, protecting access to information under the Washington Public Records Act (PRA). Importantly, the ruling from the court makes it clear that this access is protected even when a Washington city uses Flock Safety, a third-party vendor, to conduct surveillance and store personal data on behalf of a government agency.

"The Flock images generated by the Flock cameras...are public records," the court wrote in [its ruling](#). "Flock camera images are created and used to further a governmental purpose. The Flock images created by the cameras located in Stanwood and Sedro-Woolley were paid for by Stanwood and Sedro Woolley [sic] and were generated for the benefit of Stanwood and Sedro-Woolley."

The cities' move to exempt the records from disclosure was a dangerous attempt to deny transparency and reflects another problem with the massive amount of data that police departments collect through Flock cameras and

store on Flock servers: the wiggle room cities seek when public data is hosted on a private company's server.

Flock Safety's main product is ALPRs, camera systems installed throughout communities to track all drivers all the time. Privacy activists and journalists across the country recently have used public records requests to obtain data from the system, [revealing a variety of controversial uses](#). This has included agencies [accessing data for immigration enforcement and to investigate an abortion](#), the latter of which may have violated Washington law. [A recent report from the University of Washington](#) found that some cities in the state are also sharing the ALPR data from their Flock Safety systems with federal immigration agents.

In this case, a member of the public in April [filed a records request with a Flock customer](#), the City of Stanwood, for all footage recorded during a one-hour period in March. Shortly afterward, Stanwood and another Flock user, the City of Sedro-Woolley [requested the local court rule that this data is not a public record](#), asserting that "data generated by Flock [automated license plate reader cameras (ALPRs)] and stored in the Flock cloud system are not public records unless and until a public agency extracts and downloads that data."

If a government agency is conducting mass surveillance, EFF supports individuals' access to data collected specifically on them, at the very least. And to address legitimate privacy concerns, governments can and should redact personal information in these records while still disclosing information about how the systems work and the data that they capture.

This isn't what these Washington cities offered, though. They tried a few different arguments against releasing any information at all.

[The contract between](#) the City of Sedron-Woolley and Flock Safety clearly states that "As between Flock and Customer, all right, title and interest in the Customer Data, belong to and are retained solely by Customer," and "Customer Data" is defined as "the data, media, and content provided by Customer through the Services. For the avoidance of doubt, the Customer Data will include the Footage." Other Flock-using police departments across the country have also relied on similar contract language to insist that footage captured by Flock cameras belongs to the jurisdiction in question.

The contract language notwithstanding, officials in Washington attempted to restrict public access by claiming that video footage stored on Flock's servers and requests for that information would constitute the generation of a new

record. This part of the argument claimed that any information that was gathered but not otherwise accessed by law enforcement, including thousands of images taken every day by the agency's 14 Flock ALPR cameras, had nothing to do with government business, would generate a new record, and should not be subject to records requests. The cities shut off their Flock cameras while the litigation was ongoing.

If the court had ruled in favor of the cities' claim, police could move to store all their data — from their surveillance equipment and otherwise — on private company servers and claim that it's no longer accessible to the public.

The cities threw another reason for withholding information at the wall to see if it would stick, claiming that even if the court found that data collected on Flock cameras are in fact public record, the cities should still be able to block the release of the requested one hour of footage either because all of the images captured by Flock cameras are sensitive investigation material or because they should be treated the same way as [automated traffic safety cameras](#).

EFF is particularly opposed to this line of reasoning. In 2017, [the California Supreme Court sided with EFF and ACLU](#) in a case arguing that “the license plate data of millions of law-abiding drivers, collected indiscriminately by police across the state, are not ‘investigative records’ that law enforcement can keep secret.”

Notably, when Stanwood Police Chief Jason Toner made [his pitch to the City Council to procure](#) the Flock cameras in April 2024, he was adamant that the ALPRs would *not* be the same as traffic cameras. “Flock Safety Cameras are not ‘red light’ traffic cameras nor are they facial recognition cameras,” Chief Toner wrote at the time, adding that the system would be a “force multiplier” for the department.

If the court had gone along with this part of the argument, cities could have been able to claim that the mass surveillance conducted using ALPRs is part of undefined mass investigations, pulling back from the public huge amounts of information being gathered without warrants or reason.

The cities seemed to be setting up contradictory arguments. Maybe the footage captured by the cities' Flock cameras belongs to the city — or maybe it doesn't until the city accesses it. Maybe the data collected by the cities' taxpayer-funded cameras are unrelated to government business and should be inaccessible to the public — or maybe it's all related to government business

and, specifically, to sensitive investigations, presumably of every single vehicle that goes by the cameras.

The requester, Jose Rodriguez, still won't be getting his records, despite the court's positive ruling.

"The cities both allowed the records to be automatically deleted after I submitted my records requests and while they decided to have their legal council review my request. So they no longer have the records and can not provide them to me even though they were declared to be public records," Rodriguez told [404 Media](#) — another possible violation of that state's public records laws.

Flock Safety and its ALPR system have come under increased scrutiny in the last few months, as the public has become aware of illegal and widespread sharing of information.

The [system was used by the Johnson County Sheriff's Office](#) to track someone across the country who'd self-administered an abortion in Texas. Flock repeatedly claimed that this was inaccurate reporting, but [materials recently obtained by EFF](#) have affirmed that Johnson County was investigating that individual as part of a fetal death investigation, conducted at the request of her former abusive partner. They were not looking for her as part of a missing person search, as Flock said.

In [Illinois](#), the Secretary of State [conducted an audit of Flock use](#) within the state and found that the Flock Safety system was facilitating Customs and Border Protection access, in violation of state law. And in [California](#), the Attorney General recently sued the City of El Cajon for using Flock to illegally share information across state lines.

Police departments are [increasingly relying on third-party vendors](#) for surveillance equipment and storage for the terabytes of information they're gathering. Refusing the public access to this information undermines public records laws and the assurances the public has received when police departments set these powerful spying tools loose in their streets. While it's great that these records remain public in Washington, communities around the country must be swift to reject similar attempts at blocking public access.



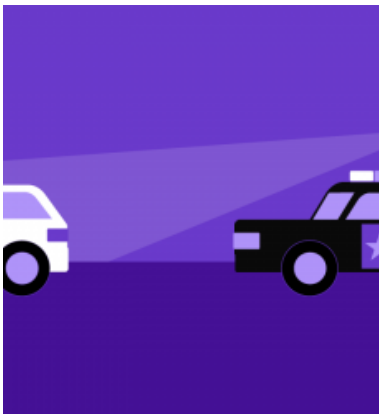


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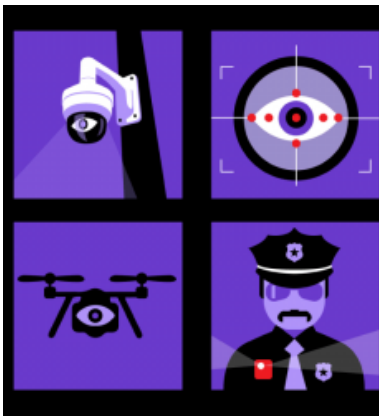
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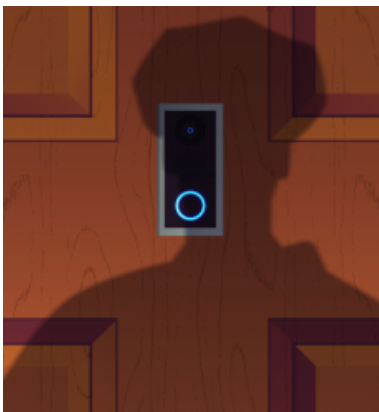
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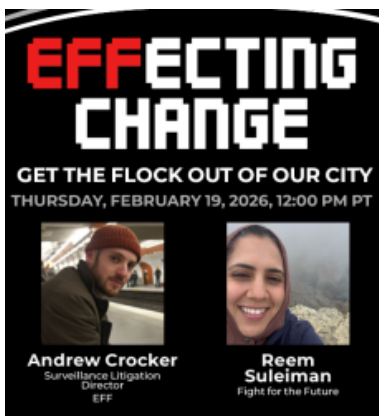
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